

2016 SCC OnLine All 1570

In the High Court of Allahabad

(BEFORE V.K. SHUKLA, A.C.J. AND MAHESH CHANDRA TRIPATHI, J.)

Dhyanendra Singh Petitioner

v.

State of U.P. and 5 Others Respondents

Writ - C No. - 29993 of 2016

Decided on July 5, 2016

Counsel for Petitioner:- Shravan Kumar Mishra

Counsel for Respondent:- C.S.C., Baleshwar Chaturvedi

1. Dhyanendra Singh is before this Court assailing the validity of the order dated 26.4.2016 passed by the respondent no. 5 and for a direction to the respondent no. 5 to restore the electricity supply connection no. 5041/93636 for the tubewell of the petitioner.

2. As per record this much is reflected that the petitioner has moved an application before the respondent no. 5 for connection of electricity supply for the tube well in the year 2013. The respondent no. 5 had issued the electricity supply for the tubewell bearing connection no. 5041/93636 in favour of the petitioner on 22.5.2013. It is stated that the petitioner had been regularly depositing the electricity bill before the authority concerned. It is reflected that the private respondent no. 6 has proceeded to file certain complaint against the petitioner to respondent no. 5. Consequently, the respondent no. 5 has proceeded to issue notice to the petitioner on 14.6.2013. The petitioner has replied the notice issued by the respondent no. 5 on 27.6.2013 along with the supported affidavit. Finally the respondent no. 5 has disconnected the electricity supply in question on 23.10.2013. It is submitted that in this regard the petitioner moved an application before the respondent no. 2 on 23.9.2014, who has directed the respondent no. 5 to restore the electricity supply in question.

3. This much is reflected that the respondent no. 6, who is the cosharer of the property has made the complaint against the petitioner on the ground that he has obtained the connection on the basis of forged paper and in this regard he has also lodged FIR on 14.9.2014 against the petitioner. Against the same the petitioner has moved discharge application before the court below in the criminal case, which was dismissed on 1.10.2015. Against the same the petitioner has filed Criminal Revision No. 8 of 2016 before this Court, in which on 12.1.2016 an order has been passed in favour of the petitioner staying the entire proceedings in question pending against the petitioner.

4. It is averred that inspite of clear direction given by respondent no. 2 for restoration of the electricity connection in question, the respondent no. 5 has not passed any order in this regard. Aggrieved with the same the petitioner filed Writ Petition No. 13756 of 2016, which was disposed of on 4.4.2016 with direction to respondent no. 5 to dispose of the representation of the petitioner. In compliance of the said order, the respondent no. 5 has considered the matter and passed an order on 26.4.2016 rejecting the claim of the petitioner on the ground that the petitioner has got the electricity connection on the basis of forged affidavit.

5. The petitioner has contended that only on the basis of complaint made by respondent no. 6, who is cosharer of the property, the electricity supply of the petitioner has been disconnected. The matter is subjudice before the competent court and without there being any order by the competent court he cannot be deprived from his valuable right which affects his livelihood. It is submitted that the petitioner has not taken shelter of any forged paper in getting the connection in question. He had been continuously and regularly paying the bill and the action of the respondents is arbitrary and unjustified.

6. Per contra, learned counsel for the respondents submits that the matter is subjudice before the court and the charges of fraud have been levelled against the petitioner in getting the connection in question, therefore, the electricity connection cannot be restored and the impugned order has been passed in accordance with law and there is no infirmity in it.

7. In view of above, once there is serious allegations that the petitioner has obtained the electricity connection on the basis of forged documents, we do not find any illegality or infirmity in the order impugned and no interference is required in the matter under Art.226 of the Constitution of India. However, if the petitioner makes fresh application for electricity connection as per the provisions of Electricity Supply Code, 2005, the same shall be considered in accordance with law within reasonable period.

8. The writ petition is disposed of accordingly.

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